

PUBLIC INTERNATIONAL LAW

UNIT I — Foundations of International Law

LLB (3 YDC) | 4th Semester | Osmania University

Target: 75+ Marks | Aug/Sep Examination

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UNIT I — OVERVIEW & EXAM STRATEGY

✓ TOPICS COVERED IN THIS UNIT

- Definition, Nature, Scope and Importance of International Law
- Relation of International Law to Municipal (Domestic) Law
- Sources of International Law
- Codification of International Law

✗ TOPICS NOT IN THIS UNIT (Do NOT mix)

- State Recognition, State Succession, State Territory → Unit II
- Extradition, Asylum, Diplomatic Immunities, Treaties → Unit III
- Law of the Sea, Airspace, Outer Space → Unit IV
- UN, ICJ, ICC, WHO, UNESCO → Unit V

🎯 PREDICTED EXAM QUESTIONS (2025)

- 🟡 MOST LIKELY Part B: Relationship between Int'l Law and Municipal Law — has appeared in 2024 paper (Q9)
- 🟡 VERY LIKELY Part B: Sources of International Law — Article 38 ICJ Statute
- 🟡 LIKELY Part A: Definition, Nature & Scope; Codification; Importance

1 2 3 4 CRITICAL NUMBERS TO MEMORIZE

Article 38 of ICJ Statute → The ONLY authoritative list of Sources of Int'l Law

1815 → Congress of Vienna — first major codification effort

1947 → UN International Law Commission (ILC) established for codification

1969 → Vienna Convention on the Law of Treaties

Dualism vs Monism → TWO major theories on Int'l Law vs Municipal Law relationship



PART A — SHORT NOTES (6 Marks Each)

Instructions: Write definition + 4-5 key points + 1 case + 1 example. Target: 1.5 pages. Time: 8-10 min.

Q1 — Definition, Nature & Scope of International Law ★★★★★

Definition

International Law (also called Public International Law or Law of Nations) is the body of rules and principles that govern the legal relations between sovereign States and other subjects of international law such as international organizations, and in certain contexts, individuals.

★ *J.G. Starke: 'That body of law which is composed for its greater part of the principles and rules of conduct which States feel themselves bound to observe, and therefore, do commonly observe in their relations with each other.'*

★ *Oppenheim: 'Law of Nations or International Law is the name for the body of customary and treaty rules which are considered legally binding by States in their intercourse with each other.'*

Nature of International Law

- Debate: Is Int'l Law truly LAW? — Austin called it 'positive morality' (not law). But this is rejected today.
- Modern view: It IS law because States recognize it as binding; violation leads to diplomatic/economic consequences.
- Primary subjects: Sovereign States; Secondary: International Organizations (UN, WHO); Individuals (in limited contexts — war crimes, human rights).
- Lacks a central legislature, executive, or judiciary — yet observed by States due to reciprocity, reputation, and consent.
- Sources: Custom, Treaties, General Principles, Judicial Decisions, Jurist writings (Article 38 ICJ Statute).

Scope of International Law

- Traditional scope: Relations between States only (war, peace, diplomacy, territory).
- Modern scope: Human rights, trade law, environmental law, space law, cyber law, refugee law.
- Horizontal system: No hierarchy — all States formally equal (sovereign equality).
- Hard Law: Binding treaties and customary law. Soft Law: Resolutions, declarations, guidelines.

📌 *Example: India-Pakistan Pulwama matter was raised in UNSC — demonstrating how Int'l Law operates even between adversaries.*

🏛️ **Case: *The Paquete Habana* (USA, 1900)** — US Supreme Court held that customary international law is part of US law — fishermen's vessels exempt from capture during wartime.

🏛️ **Case: *Nicaragua v. USA* (ICJ, 1986)** — ICJ applied customary international law to hold USA liable for supporting Contra rebels — classic on nature and binding force of Int'l Law.

💡 **EXAM TIP:** Mnemonic for nature debate: 'AUSTIN was Wrong — OPPENHEIM was Right' (AW-OR). Remember: Starke, Oppenheim = Int'l Law IS law.

📌 **KEY DISTINCTION:** Public International Law (State relations) vs Private International Law

(Conflict of Laws between private parties in different States)

Q2 — Importance of International Law ★★★★★

Definition / Introduction

International Law serves as the legal framework that enables peaceful coexistence, cooperation, and order among sovereign States in an interdependent world.

Why International Law is Important

- Maintenance of Peace and Security: Provides rules for peaceful resolution of disputes (ICJ, UN Charter Article 2(3) — settle disputes peacefully).
- Regulation of Diplomatic Relations: Governs recognition of States, privileges and immunities of diplomats (Vienna Convention 1961).
- Trade and Economic Order: WTO, bilateral trade agreements — all governed by Int'l Law principles.
- Protection of Human Rights: UDHR 1948, ICCPR, ICESCR — all binding Int'l instruments.
- Environmental Protection: Kyoto Protocol, Paris Agreement — Int'l Law framework for climate.
- Space and Cyber Governance: Outer Space Treaty 1967, emerging cyber norms.
- Prevention of War Crimes: ICC, Geneva Conventions — hold individuals accountable.
- Sovereign Equality: Article 2(1) UN Charter — all States equal regardless of size/power.

 *Example: COVID-19 pandemic: WHO regulations under Int'l Health Regulations (2005) — an Int'l Law instrument — governed global response.*

 **Case: Corfu Channel Case (ICJ, 1949)** — Albania held responsible for mines in its waters injuring British warships — fundamental obligation of States not to allow territory used against other States.

 **EXAM TIP:** For 6-mark answer: Pick 5 importance points + 1 case. Time: 9 min. Do NOT go into definitions of each instrument — just name them.

Q3 — Sources of International Law ★★★★★

Introduction

Sources of International Law are the materials and processes from which rules of international law are derived. The definitive list is found in ARTICLE 38 OF THE STATUTE OF THE INTERNATIONAL COURT OF JUSTICE (ICJ).

ARTICLE 38(1) ICJ STATUTE — THE MASTER LIST OF SOURCES

Primary Sources (Binding)

1 International Conventions/Treaties (Art. 38(1)(a))

- Written agreements between States — most important modern source.
- Bilateral (2 parties) or Multilateral (many parties).
- Examples: UN Charter, VCLT 1969, UNCLOS 1982.
- Binding only on States that ratify — pacta sunt servanda (treaties must be kept).

2 International Custom (Art. 38(1)(b))

- Two elements: (a) State practice — consistent, general practice over time; (b) *Opinio juris* — belief that practice is legally obligatory.
- Examples: Freedom of the high seas, diplomatic immunity, principle of non-intervention.

 **Case:** *North Sea Continental Shelf Cases (ICJ, 1969)* — ICJ laid down test for customary international law: extensive, uniform State practice + *opinio juris*.

3 General Principles of Law (Art. 38(1)(c))

- Principles common to major legal systems of the world (civil law + common law).
- Examples: Good faith, estoppel, *res judicata*, *pacta sunt servanda*.
- Used when no treaty or custom applies — fills gaps.

Subsidiary Sources (Persuasive)

4 Judicial Decisions (Art. 38(1)(d))

- ICJ decisions, PCIJ decisions, Arbitral awards.
- Not binding as precedent (Article 59 ICJ Statute — only binding between parties in that case).
- BUT highly persuasive — courts follow their own decisions (*comity*).

5 Writings of Publicists (Art. 38(1)(d))

- 'Teachings of the most highly qualified publicists of the various nations.'
- Examples: Grotius, Oppenheim, Lauterpacht, Starke, Vattel.
- Used to determine what the law IS when primary sources are unclear.

Other Sources (Soft Law)

- UN General Assembly Resolutions — not binding but reflect opinio juris (e.g., UDHR 1948).
- Equity — used by ICJ to achieve fair results (ex aequo et bono — Art. 38(2), only if parties consent).

📌 *Example: India's Bilateral Investment Treaties with USA, UK, Japan — treaties as primary source of Int'l Law governing foreign investment.*

🏛️ **Case: *Asylum Case (Colombia v. Peru, ICJ, 1950)*** — ICJ refused to recognize Colombian custom of granting asylum as binding on Peru — shows requirements for custom: consistent and extensive practice.

💡 **EXAM TIP: Mnemonic: 'C-C-G-J-W' = Conventions, Custom, General Principles, Judicial Decisions, Writings. Art. 38 = ALWAYS cite this in Sources questions.**

Q4 — Codification of International Law ★★★★★

Definition

Codification of International Law is the process of systematically restating, recording, and clarifying the existing rules of customary international law and developing new rules in written, authoritative form.

Historical Evolution

- Early efforts: Scholars like Grotius (Father of International Law) — 'De Jure Belli ac Pacis' (1625) — first systematic work.
- 1815: Congress of Vienna — codified rules on diplomatic ranks and river navigation.
- 1856: Declaration of Paris — first multilateral effort on laws of war at sea.
- 1864: Geneva Convention — first codification on treatment of wounded soldiers (Red Cross).
- 1899/1907: Hague Peace Conferences — codified laws of war.
- League of Nations era: Limited codification efforts through conferences.
- 1947: International Law Commission (ILC) established by UNGA — systematic codification.

International Law Commission (ILC)

- Established: 1947 by UNGA Resolution 174(II)
- Mandate: Progressive development AND codification of international law.
- Members: 34 experts serving in personal capacity.
- Major outputs: VCLT 1969 (Law of Treaties), UNCLOS 1982 (Law of Sea), Draft Articles on State Responsibility.

Advantages of Codification

- Certainty and predictability — States know the rules clearly.
- Uniformity — removes conflicting customary rules.
- Accessibility — written form, available to all.
- Progressive development — new rules can be introduced.

Disadvantages of Codification

- Rigidity — codified rules less flexible than custom.
- Incomplete — not all States ratify all conventions.
- Politics — States negotiate based on interests, not pure law.
- Possible freezing — may stop natural evolution of custom.

 *Example: Vienna Convention on Law of Treaties 1969 — codified centuries of customary treaty law into one binding instrument. India ratified it.*

 **Case:** *ILC Draft Articles on State Responsibility (2001)* — Though not a treaty, treated as authoritative codification — cited by ICJ as reflecting customary law.

💡 EXAM TIP: Remember: ILC = 1947; VCLT = 1969. Grotius = Father of Int'l Law. Codification ≠ legislation; it systematizes existing custom into text.

Q5 — Relation of International Law to Municipal Law ★★★★★

📖 Introduction

Municipal Law (domestic law) and International Law are two distinct legal systems. Their relationship — which prevails in case of conflict — is one of the most debated questions in international law.

⚖️ Three Major Theories

1. MONISM — One Legal Order

- Proponents: Kelsen, Lauterpacht, Scelle.
- View: Int'l Law and Municipal Law are PART OF ONE LEGAL SYSTEM.
- Sub-theory A (Int'l Law supremacy): Int'l Law prevails — Kelsen.
- Sub-theory B (Municipal Law supremacy): National will is supreme — rarely accepted.
- International Law is directly applicable in domestic courts without transformation.

2. DUALISM — Two Separate Legal Orders

- Proponents: Triepel, Anzilotti.
- View: Int'l Law and Municipal Law are SEPARATE, DISTINCT systems — different sources, subjects, and enforcement.
- Int'l Law cannot operate in domestic courts unless INCORPORATED by legislation.
- Example: UK — treaties must be incorporated by Act of Parliament.

3. HARMONIZATION / COORDINATION THEORY (Modern)

- Practical approach — recognizes both systems coexist; seeks harmonious interpretation.
- Courts give effect to Int'l Law as far as possible without overriding clear domestic law.

🟡 **KEY RULE:** Under international law, a State CANNOT invoke its domestic law to justify non-performance of international obligations (Art. 27, VCLT 1969)

I N Position in India

- India follows a modified DUALISM approach.
- Constitutional basis: Art. 51 — directive to foster respect for Int'l Law.
- Treaties: NOT automatically binding — need Parliamentary legislation (Indian Aluminum Co. v. Kerala Electricity Board).
- Customary Int'l Law: Directly applicable — but subject to fundamental rights and Constitutional provisions.
- Courts interpret domestic law consistently with India's int'l treaty obligations (Vishaka v. State of Rajasthan — CEDAW applied).

⚖️ **Case:** *R v. Secretary of State for Home Department, ex parte Brind (UK, 1991)* — UK House of Lords — treaty not binding domestically unless incorporated by legislation — classic dualism.

⚖️ **Case:** *Vishaka v. State of Rajasthan (Supreme Court, 1997)* — Supreme Court of India applied CEDAW (Int'l treaty) to fill gap in domestic law on sexual harassment — indirect monism in practice.

⚖️ **Case:** *Gramophone Company of India v. Birendra Bahadur (SC, 1984)* — Held: Customary Int'l Law is part of Indian law; but treaties need Parliamentary incorporation.

📌 *Example: European Union: operates as near-monist system — EU law directly applicable in member states without separate legislation.*

💡 **EXAM TIP:** Mnemonic: MONISM = 'M for Merge' — one system. DUALISM = 'D for Divide' — two separate systems. India = DUALISM for treaties, MONISM for custom.



PART B — LONG ESSAYS (15 Marks Each)

Instructions: 4-5 pages per answer. Use headings. Cite 3+ cases. Conclude with legal basis.
Time: 20-22 min each.

Essay Q9 — Relationship Between Int'l Law & Municipal Law (Theories)



I. Introduction

The relationship between International Law and Municipal (domestic) Law represents one of the most fundamental and contested questions in legal theory. Two legal systems — one governing relations between States, the other governing relations within a State — inevitably interact, overlap, and sometimes conflict. The central question is: when they conflict, which prevails? Three theories have been advanced: Monism, Dualism, and the modern Harmonization approach.

■ **Core tension:** A State may be bound by int'l treaty but its domestic courts follow national law — who wins?

II. Monism — Unity of Legal Order

Monism holds that International Law and Municipal Law form part of a SINGLE, unified legal order. Both derive from the same ultimate source — whether rational law, natural law, or the universal legal community.

Key proponents and their views:

- Hans Kelsen (1881-1973): International Law sits at the apex of a unified hierarchy — 'Grundnorm' of the entire legal system. International Law prevails over Municipal Law in case of conflict.
- Hersch Lauterpacht: Emphasized individual as the ultimate subject — Int'l Law and Municipal Law are one because both ultimately concern individuals.
- Georges Scelle: 'Solidarist' monism — all law is ultimately one; individual is the true subject.

Practical implications of Monism:

- International treaties become automatically operative in domestic courts without need for legislation.
- Domestic court must apply international law even if it conflicts with national statute.
- Used in Netherlands, Germany (Art. 25 Basic Law — general rules of Int'l Law = integral part of federal law).

⚖️ **Case:** *Lotus Case (PCIJ, 1927)* — France v. Turkey — PCIJ applied Int'l Law directly to determine criminal jurisdiction — monist approach by international court.

III. Dualism — Separation of Legal Orders

Dualism, advanced by Heinrich Triepel (1899) and Dionisio Anzilotti, holds that International Law and Municipal Law are fundamentally SEPARATE and DISTINCT legal systems. They differ in:

- Sources: Int'l Law — treaties and custom between States; Municipal Law — legislation, judicial decisions, custom of one State.
- Subjects: Int'l Law — States and international organizations; Municipal Law — individuals.
- Substance: Int'l Law — regulates conduct between States; Municipal Law — conduct of individuals.

Consequence of Dualism:

- International Law cannot operate in domestic courts as such — it must first be TRANSFORMED or INCORPORATED into Municipal Law by legislative act.
- England's classic example: Treaty of Rome (EEC) only became part of UK law through European Communities Act 1972.
- If Municipal Law conflicts with Int'l Law, Municipal Law governs in domestic courts; but the State incurs international responsibility.

⚖️ **Case:** *Attorney General for Canada v. Attorney General for Ontario (Privy Council, 1937)* — Labour Conventions Case — even though Canada had ratified ILO conventions, they were not binding on provinces without domestic legislation — dualism.

⚖️ **Case:** *Parlement Belge (UK, 1879)* — Court held a Belgian royal yacht treaty could not override domestic law without Parliamentary act — foundational dualist decision.

IV. Harmonization / Coordination Theory

The modern approach seeks to avoid the absolute positions of Monism and Dualism. Rather than asking 'which prevails?', harmonization asks 'can they be reconciled?'

- Courts should interpret domestic law consistently with international obligations where possible.
- Only when clear conflict arises should priority be determined.
- Reflects the practical reality that most States operate between monism and dualism.

V. Position Under International Law

📄 **Article 27, Vienna Convention on the Law of Treaties 1969:** A State cannot invoke its internal law as justification for failure to perform its treaty obligations.

This is the fundamental rule from the international plane: whatever domestic law says, a State remains internationally responsible. Domestic law cannot excuse international breach.

⚖️ **Case:** *Alabama Claims Arbitration (1872)* — USA held internationally responsible despite absence of domestic law to prevent British ship construction for Confederacy — State cannot escape int'l liability via domestic law.

VI. India's Constitutional Position

- Article 51, Constitution of India: The State shall endeavour to foster respect for international law and treaty obligations.
- India follows DUALISM for treaties: Treaties not self-executing; need Parliamentary legislation (e.g., Protection of Plant Varieties Act for TRIPS compliance).
- India follows MODIFIED MONISM for customary international law: Automatically part of Indian law unless inconsistent with Constitution or Act of Parliament.

⚖️ **Case:** *Vishaka v. State of Rajasthan (1997)* — Supreme Court used CEDAW (int'l treaty) as a guiding document to frame guidelines on sexual harassment — demonstrating pragmatic harmonization.

⚖️ **Case:** *NALSA v. Union of India (2014)* — SC used Yogyakarta Principles (soft law) + ICCPR to

recognize rights of transgender persons — int'l law shaping domestic constitutional interpretation.

VII. Critical Analysis

- Pure monism is impractical — sovereigns will not allow foreign law to automatically override national legislation.
- Pure dualism creates a gap — States can shield domestic courts from int'l obligations.
- Modern trend: harmonization — use int'l law as interpretive tool; incorporate by legislation where possible.
- Globalization and human rights law are pushing States toward greater monist tendencies.

VIII. Conclusion

The relationship between International Law and Municipal Law is not one of rigid hierarchy but of dynamic interaction. While dualism remains the dominant approach in practice (especially for treaties), the modern trend — visible in India's Supreme Court jurisprudence and EU practice — moves toward harmonization. The ultimate principle, enshrined in Article 27 VCLT, is clear: a State cannot hide behind domestic law to escape international responsibility. The two systems must coexist; and States must bridge the gap through legislation, judicial interpretation, and good faith.

Essay Q11 — Sources of International Law (Article 38 ICJ Statute) ★★★★★

I. Introduction

Sources of International Law are the processes and materials from which rules binding upon States are derived. Unlike domestic legal systems with a single legislature, International Law develops through multiple sources. The definitive and authoritative enumeration of these sources is found in ARTICLE 38(1) OF THE STATUTE OF THE INTERNATIONAL COURT OF JUSTICE, which the Court is directed to apply.

■ Article 38 is not merely a list — it is the CONSTITUTIONAL PROVISION of international law sources.

II. Article 38(1) ICJ Statute — Text and Framework

Article 38(1) directs the ICJ to apply:

- (a) International Conventions — general or particular, establishing rules expressly recognized by contesting States.
- (b) International Custom — as evidence of a general practice accepted as law.
- (c) General Principles of Law — recognized by civilized nations.
- (d) Judicial Decisions and Teachings of publicists — as subsidiary means for determination of rules.

Note: Article 38 does NOT create a strict hierarchy — but in practice, treaties are applied first, then custom, then general principles.

III. Treaties / International Conventions

Treaties are written agreements between States (or international organizations) governed by international law. They are the MOST IMPORTANT modern source of international law because:

- They create express, clear, written obligations — certainty for States.
- Bilateral Treaties: Between two States (e.g., India-USA nuclear deal).
- Multilateral Treaties: Many States (e.g., UN Charter, VCLT, UNCLOS).
- 'Law-making' treaties bind only parties; but may crystallize into customary law over time.

■ Fundamental principle: PACTA SUNT SERVANDA — treaties must be observed in good faith (Art. 26, VCLT 1969).

🏛️ **Case:** *Anglo-Iranian Oil Co. Case (ICJ, 1952)* — ICJ held it lacked jurisdiction because Iran's declaration only accepted jurisdiction for treaties after a specific date — importance of treaty text and scope.

IV. International Custom

Customary International Law (CIL) is the oldest and most widespread source. It arises from the consistent and general practice of States followed from a sense of legal obligation.

Two essential elements:

- 1. State Practice (usus): Consistent, widespread, and representative state behavior over time. Includes diplomatic acts, legislation, court decisions, military manuals.
- 2. Opinio Juris (psychological element): States must follow the practice because they believe it is legally required — not mere courtesy.

⚖️ **Case: *North Sea Continental Shelf Cases (ICJ, 1969)*** — Definitive statement on custom: State practice must be extensive and virtually uniform + opinio juris. Equidistance principle was NOT custom as Germany had not accepted it.

⚖️ **Case: *Nicaragua v. USA (ICJ, 1986)*** — ICJ found customary rules on non-use of force and non-intervention binding on USA even independently of UN Charter — shows autonomy of customary law.

- Special/Local Custom: Binding only between specific States — must be proved by consistent practice between those States.

⚖️ **Case: *Asylum Case (Colombia v. Peru, ICJ, 1950)*** — Colombia failed to prove a uniform, consistent regional custom on diplomatic asylum binding on Peru.

V. General Principles of Law

General Principles of Law are legal principles common to the major legal systems of the world (civil law, common law, Islamic law, etc.). They fill gaps when neither treaty nor custom provides a rule.

- Examples: Good faith, estoppel, pacta sunt servanda, ne bis in idem, res judicata, proportionality.
- Basis: All major legal systems share certain fundamental notions.

⚖️ **Case: *Chorzow Factory Case (PCIJ, 1928)*** — Established the general principle that breach of international obligation creates duty to make reparation — derived from principles common to all legal systems.

VI. Judicial Decisions and Scholarly Writings (Subsidiary Sources)

Article 38(1)(d) provides these as subsidiary means — for DETERMINING rules, not creating them.

- ICJ decisions: Not binding as precedent (Article 59 — only between parties) but immensely persuasive.
- PCIJ, arbitral awards, tribunals: Also cited.
- Scholarly writings: Grotius (*De Jure Belli ac Pacis*, 1625), Vattel, Oppenheim, Brownlie — used to determine state of law.

📌 Modern addition: UNSC/UNGA Resolutions may contribute to custom formation by evidencing opinio juris.

VII. Other Modern Sources

- UNGA Resolutions: Not binding per se; but consensus resolutions reflect opinio juris (e.g., UDHR 1948 — now largely customary law).
- Decisions of International Organizations: Binding decisions of UNSC under Chapter VII are binding on all UN members.
- Equity (Art. 38(2)): ICJ can decide ex aequo et bono (in equity) if parties agree.
- Jus Cogens (Peremptory Norms): Highest-ranking, non-derogable norms — prohibition of genocide, slavery, torture. No treaty can override them (Art. 53, VCLT).

■ JUS COGENS = Non-derogable peremptory norms. Examples: prohibition of genocide, slavery, torture, aggression.

VIII. Conclusion

Article 38 of the ICJ Statute remains the bedrock of international law's sources. In the modern era, the traditional hierarchy has been supplemented by UNGA resolutions, decisions of specialized tribunals (WTO DSB, ITLOS), and emerging norms of jus cogens. The genius of the international legal order lies in this pluralism of sources — enabling law to develop through State practice, treaty-making, and judicial elaboration without requiring a world legislature.

PART C — PROBLEM QUESTIONS (IRAC Method, 10 Marks Each)

Instructions: STRICTLY follow IRAC. Issue → Rule → Application → Conclusion. Each section should be clearly labeled. Time: 15 min each.

IRAC Problem 1 — State X and an Unincorporated Treaty

Scenario: State X ratifies a treaty protecting workers' rights. Its domestic courts refuse to apply it saying it has not been enacted into domestic law. Worker A seeks remedy.

I — Issue

Whether an international treaty automatically becomes part of domestic law upon ratification, or whether it requires separate legislative incorporation to be enforceable in domestic courts.

R — Rule

- Dualism vs Monism: Under dualist systems (UK, India), treaties must be incorporated by legislation to be operative in domestic courts.
- Article 27, VCLT 1969: A State cannot invoke its internal law as justification for failure to perform treaty obligations — but this operates on the INTERNATIONAL plane, not domestic.
- Article 51, Indian Constitution: Directs the State to foster respect for international law.
- In India: Treaties need Parliamentary incorporation — Indian Aluminum Co. v. Kerala State Electricity Board (SC, 1975) confirmed this.
- Pacta Sunt Servanda (Art. 26 VCLT): The State must perform the treaty in good faith — but domestic courts follow domestic law until legislature acts.

A — Application

State X follows a dualist system. The treaty has been ratified — creating INTERNATIONAL OBLIGATION on State X. However, ratification alone does not make it enforceable in domestic courts without legislation.

Worker A's remedy in domestic courts is limited because the treaty has not been incorporated. However: (1) State X bears international responsibility for failure to implement; (2) Worker A could pursue remedies through international mechanisms if available; (3) Courts may use the treaty as an interpretive aid to read domestic law harmoniously.

C — Conclusion

CONCLUSION: The treaty is NOT automatically enforceable in State X's domestic courts. Worker A's domestic remedy depends on whether enabling legislation exists. However, State X is internationally liable for breach and must implement the treaty through legislation. Courts should interpret existing domestic law consistently with treaty obligations wherever possible.

IRAC Problem 2 — Custom as Binding Law

Scenario: State A claims that State B is bound by a customary rule protecting a minority group. State B denies the rule exists or that it accepted it. Decide.

I — Issue

Whether a rule of customary international law is binding on State B, and what must be established to prove the existence and applicability of a customary rule.

R — Rule

- Article 38(1)(b) ICJ Statute: Custom = 'general practice accepted as law.'
- North Sea Continental Shelf Cases (ICJ, 1969): Two elements for custom — (i) extensive, uniform State practice; (ii) *opinio juris* (belief that practice is legally obligatory).
- 'Persistent Objector' Rule: A State that consistently objected to a custom before it crystallized is NOT bound by it (Asylum Case).
- Regional/Local Custom: Binding only between specific States — must prove consistent practice between them (Asylum Case, ICJ 1950).

A — Application

State A must prove: (1) The alleged rule has widespread, consistent State practice, and (2) States follow it from a sense of legal obligation (*opinio juris*).

If State B was a persistent objector during the formation of the custom — i.e., it openly rejected the rule before it crystallized — it is NOT bound.

If State B is a newly independent State that did not exist when the custom formed, general view is that new States are bound by existing customary law (succession to custom).

C — Conclusion

CONCLUSION: State B is bound by the customary rule IF State A proves both State practice and *opinio juris*. However, if State B was a persistent objector, it is NOT bound. State A bears the burden of proof. The ICJ would apply the North Sea Continental Shelf test. Mere assertion of custom is insufficient — evidence of consistent state practice and legal obligation must be demonstrated.

QUICK REVISION SHEET — UNIT I

Critical Numbers

Art. 38 ICJ Statute → Sources of Int'l Law (THE master list)
Art. 27 VCLT 1969 → Cannot invoke internal law to escape treaty obligation
Art. 26 VCLT 1969 → Pacta Sunt Servanda — treaties must be observed
Art. 53 VCLT 1969 → Jus Cogens — peremptory norms
Art. 51 Indian Constitution → Foster respect for Int'l Law
Art. 2(3) UN Charter → Peaceful settlement of disputes
1625 — Grotius' De Jure Belli ac Pacis
1947 — ILC established
1969 — VCLT adopted
1986 — Nicaragua v. USA (custom)

Top Cases — One Liner Each

- Paquete Habana (1900): Custom = part of US law; fishermen's vessels exempt from wartime capture.
- Nicaragua v. USA (1986): Customary non-intervention binding on USA; \$100M damages.
- North Sea Continental Shelf (1969): 2 elements of custom — practice + opinio juris.
- Asylum Case (1950): Need consistent + uniform practice; regional custom not proved.
- Corfu Channel (1949): State responsible for harm from its territory to other States.
- Chorzow Factory (1928): Breach of int'l obligation → reparation — general principle.
- Vishaka v. Rajasthan (1997): India used CEDAW to fill domestic law gap — harmonization.
- Lotus Case (1927): Criminal jurisdiction — PCIJ applied int'l law directly.

Memory Mnemonics

SOURCES = 'Craving Great Justice With Equity' → Conventions, Custom, General Principles, Judicial Decisions, Writings, Equity (Art. 38)

MONISM vs DUALISM: 'M = Merge (one system), D = Divide (two systems)'

Custom ELEMENTS: 'P + OJ' = Practice + Opinio Juris

India's position: 'TREATIES = Dualism (need legislation); CUSTOM = Monism (automatic)'

JUS COGENS = 'Just Can't Go' = rules that cannot be derogated by treaty

TRAP QUESTIONS — Common Exam Mistakes

- TRAP 1: 'Does India automatically follow all signed treaties?' — NO. India is dualist for treaties. Need legislation.
- TRAP 2: 'Is ICJ judgement binding as precedent?' — NO. Article 59 — only binding between parties to that case.
- TRAP 3: 'Is UNGA resolution binding?' — NO, in general. UNSC Resolutions under Chapter VII

ARE binding.

- TRAP 4: 'Can a State escape int'l liability by passing domestic law?' — NO. Art. 27 VCLT.
- TRAP 5: 'Is Int'l Law really law? (Austin)' — Austin was WRONG. Modern view: Int'l Law is law. Cite Oppenheim, Starke.
- TRAP 6: 'What is ex aequo et bono?' — Deciding on equity (Art. 38(2)) — only if BOTH parties agree.



Last-Minute Checklist

- ☒ Always cite Article 38 ICJ Statute when answering Sources question
- ☒ For Municipal Law question: Mention Monism + Dualism + Art. 27 VCLT + India's position
- ☒ Always mention TWO elements of custom: Practice + Opinio Juris
- ☒ Cite at least 2 cases per Part B answer
- ☒ In IRAC: Label each section clearly — ISSUE / RULE / APPLICATION / CONCLUSION
- ☒ Conclude with constitutional/international law basis

 **TARGET:** Attempt all 5 Part A questions (5 x 6 = 30). Do Q9 from Part B (int'l law vs municipal law — Unit I topic). For Part C choose wisely — IRAC problems on Sources or custom are likely from this unit.

— End of Unit I: Foundations of International Law —

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